

MINUTES

A **Special Education Behavioral Health Subcommittee Meeting** is held **May 3, 2023** and scheduled from 5-6p. The meeting is held via remote participation on Zoom and viewed through Medford Community Media on Comcast Channel 15 and Verizon Channel 45.

The Purpose of this Meeting is to review and develop a non-discrimination / inclusion statement for Medford Public Schools Outreach / Information.

Attending: Chair/Member McLaughlin, Member Ruseau, Member Mustone

Chair/Member McLaughlin opens the meeting.

Roll Call: all present 3/0

Purpose: to discuss an inclusion/equity statement/ accommodation statement for Medford Public Schools.

Member McLaughlin shares her screen and notes she will send the document to the superintendent's office after the meeting to share if needed. She has already shared it with committee members and Ms. Bowen, Director of People services as well as Dr. Edouard-Vincent. The document helps outline some of the discussion that she would like to use.

Highlights from some research done on some differences:

MPS Strategic Plan - Equitable Learning Opportunities

<https://www.mps02155.org/about/strategic-plan>

"...prioritize systems that support a shared vision for disability awareness, anti-racism, anti-bias and cultural proficiency across the district..."

...provide equal access to academics, support and enrichment..."

The E in the ACES acronym in terms of the strategic plan - the link is available on the school website with a couple of statements relevant to the meeting today which prioritize systems that support a shared vision for disability awareness, anti-racism, anti-bias and cultural proficiency across the district, and provide equal access to academic support and enrichment.

Public schools receiving Federal funds are required to have a non-discrimination clause in their documentation on their website. Medford Public Schools documentation is not easy to find. Member McLaughlin spent some time searching for words like non-discrimination, disability, gender and it didn't readily come up. There is a statement on the home page from Superintendent Edouard-Vincent, that talks about but it is not an actual non-discrimination statement or clause - which the definition is required. There are some (words) in both the school committee policy statement and 504 ADA requirements on the website, however she feels it could be more prominent. The definition of non-discrimination is the practice of treating people, companies, countries the same as others.

Member McLaughlin continues on to share the definition of non-discrimination vs. inclusion:

Non-discrimination: the practice of treating people, companies, countries, etc. in the same way as others in order to be fair:

Inclusion: means that "All children, regardless of ability or disability, have the right to be respected and appreciated as valuable members of the school community, fully participate in all school activities, and interact with peers of all ability levels with opportunities to develop friendships."

Ref: *National Center on Health, Physical Activity and Disability. Discover Inclusive School Wellness. Birmingham, AL: National Center on Health, Physical Activity and Disability; 2016.*
[https://www.nchpad.org/fppics/NCHPAD_Discover%20Inclusive%20School%20Wellness\(1\).pdf](https://www.nchpad.org/fppics/NCHPAD_Discover%20Inclusive%20School%20Wellness(1).pdf)

Member McLaughlin: continues and shares an example from the community of an example of an inclusion form. This is something the Medford Special Education Parent Advisory Council and other community members, who worked with Medford Recreation Department, to include on all their recreation notices and notifications. She notes she is not going to get into the legal aspects but comments that under Section 504 of the Rehabilitation Act, ADA and particularly in IDEA where their requirements to be inclusive of all persons includes students with disabilities.

Medford Recreation Department Inclusion Form

For participants who wish to request special accommodations for a program, please fill out our **Inclusion Services Request Form**. Please submit form to MedfordRecreation@medford-ma.gov
https://medfordma.myrec.com/forms/5968_medford_rec_inclusion_services_request.pdf

Member McLaughlin shares the following References and Resources pertinent to the presentation and the requirements for non-discrimination and expand to inclusion.

References

1. Individuals with Disability Education Act (IDEA), 33 § 1400-1482 (1990).
2. National Center on Health, Physical Activity and Disability. *Discover Inclusive School Wellness*. Birmingham, AL: National Center on Health, Physical Activity and Disability; 2016.
[https://www.nchpad.org/fppics/NCHPAD_Discover%20Inclusive%20School%20Wellness\(1\).pdf](https://www.nchpad.org/fppics/NCHPAD_Discover%20Inclusive%20School%20Wellness(1).pdf)
3. [PDF – 4.4 MB]
4. . Accessed December 18, 2019.
5. U.S. Department of Education, Office of Special Education and Rehabilitative Services, Office of Special Education Programs. *Creating Equal Opportunities for Children and Youth with Disabilities to Participate in Physical Education and Extracurricular Athletics*. Washington, DC: US Dept Education; 2011.
<https://eric.ed.gov/?id=ED524248>
6. .Accessed December 18, 2019.
7. Americans with Disabilities Act, 42 U.S. Code § 12101 12102 (2009).
8. Section 504, Rehabilitation Act, 29 U.S.C. § 701, as amended through P.L. 114—95 (2015)

Resources

1. An interesting article written by a professor (Harvard Graduate School of Education, working with Professor Hare (sp)), who makes her syllabus more inclusive and how it has evolved over time:
<https://www.insidehighered.com/views/2020/10/30/how-inclusive-and-accessible-your-statement-inclusion-and-accessibility>
2. US DOE Engage Every Student Initiative.
<https://www.ed.gov/news/press-releases/us-department-education-announces-engage-every-student-initiative-ensure-every-student-has-access-high-quality-learning>
3. Supreme Court Rules for Deaf Student
<https://www.ncsl.org/state-legislatures-news/details/supreme-court-rules-for-deaf-student-denied-appropriate-education>

Member McLaughlin continues to say the purpose is for the subcommittee to look at a sample inclusion or accommodation statement. In her search for inclusion statements, what's coming up are DEI statements. Some people refer to disability in their DEI statements and some don't. To some people it's strictly anti-racism which is a topic for another conversation. Disability is part of diversity as is culture, language and race.

Member McLaughlin continues with an example from either Harvard or the University of Virginia:

"We value inclusion and access for all participants and are pleased to provide reasonable accommodations for this activity / event. Please contact [insert contact name and email/phone number] to make a reasonable accommodation request. Requests must be submitted by [insert date]." "This event is wheelchair accessible.

Another organization notes: "We recommend using an accommodation statement in publicity materials to let individuals know how to **request accommodations for your event or program**, if needed".

Member McLaughlin speaks to examples from Medford Public Schools currently on the website as well as some examples from other school districts and what they show on their websites.

Joan Bowen adds a comment/suggestion via chat: *"If your student has an IEP or 504 plan and requires accommodations, please reach out to your student's ETL or building principal to discuss any reasonable accommodations that your student may require to fully participate in this activity"*

Alex Lauric presents a question: wonders if school events also include events organized by PTA. She only has examples from Roberts and McGlynn. "At Roberts, the enrichment after class, after school clubs were organized by video - the school dance, the fun night, the game night - everything is organized by video and attendance is not required. She wonders if what Member McLaughlin "talks about includes that"

Member McLaughlin: defers to Joan Bowen on that but would say *"yes, that if anything is the life of the school, including using the school facilities, if it's including all school, all non-disabled students, if there are opportunities for that, then yes but would want to ask the Director of People Services for perspective."*

Joan Bowen: agrees with that statement. Any activity that is within a school building, reasonable accommodation should be offered if we are made aware of what those may be. She notes she has a monthly meeting with CPAC and it was noted recently that a lot of parents don't realize they can request reasonable accommodations. It's getting the information out to parents that if their child is going to attend a school dance and they may need some support, we can put a plan into place. If it's a student on an IEP, they should work with their evaluation team leader and if it's a student on a 504, they would talk to a Guidance Counselor. She confirms that each building has a 504 coordinator.

Alex Lauric continues with a follow up question asking if the statement being put together now is going to be on the website or sent to us (parents/caregivers) announcing the events.

Member McLaughlin comments that not only will it (the statement) apply to enrichment activities, the life of the school but also to field trips. A lot of parents don't know they are entitled to accommodations and a lot of staff members might not understand that as well. It's important that the information goes out from the Principals regarding school based activities and field trips. One of her suggestions is to have a field trip form or anything similar go out with a non-discrimination statement on the documentation with an additional sentence around accommodations.

Chenine Peloquin - a recreation therapist and parent of a 3rd grader at the Roberts and an incoming kindergartener speaks: it seems to her that the procedure needs to be different for a field trip vs. an after school activity. Field trips are being offered as part of the school day. The default should be how are we going to help the child participate and not have to wait for the parent to say yes I want this. It's their right to go on the field trip. It's up to the administration to look ahead and make sure the transportation is accessible, if there is a child/student with a disability as well as determine what they can do once they get to the destination (i.e. The Constitution). The default should be the child is expected to go with their class. After school activities need to be addressed even down to children with Epipens because right now, at the Roberts, Epipens are not allowed to attend the after school program, because the parents say they are not related to the school, even though it's a school advertised school space run immediately after school by the PTO, that is sponsored by the school. Regardless of being a parent who's volunteered, it is the schools responsibility to make sure that the child gets to participate. That's a major concern of hers. Then one gets into children who have IEP's who need more social support in order to participate and their lack of access to these programs.

Member McLaughlin speaks to some policy pieces that need to be discussed with other committee members. There are some things that could be recommended to the Rules, Policy and Equity Subcommittee, with recommendations from the Special Ed. Behavioral Health Subcommittee and or a joint meeting around (this issue) Accommodations are required for field trips during the school day, for

students to meaningfully attend. She continues to point out that the PTO's are volunteer organizations and a lot of these events are fundraisers and after school enrichment programs. If they are being held in the school, students with disabilities cannot be excluded under federal law. The issue is how to make sure everyone is informed.

Tanya Sullivan with a child in the post-grad program in project transition, a co-chair in Medford CPAC and also on this subcommittee speaks: she wants to bring to light what everyone else (who has spoken) is saying. When we (CPAC?) had our meeting with the administration, we were talking about full disclosure. Having the information ahead of time - and she provides an example of a school dance where there's no language that says there can be support, then children with disabilities are not going to go. (Parents) are going to say it's not worth the aggravation trying to figure out what to do, as opposed to having the language in place that directs them to speak to the right person. Be proactive and get ahead of it to ensure all the supports are in place for when and if those parents say their child is going on a field trip.

Member McLaughlin: part of the issue is the onus should not be on parents of children with disabilities and complex healthcare needs. The last thing they need to be burdened with is to convince other people that the child is entitled to attend the event at the school. Out of district students are also connected to school and should be getting this information in order to actively participate in the life of the school in order to build skills and friendships.

Member Mustone: speaks and asks if we are writing a policy to look for funding to make sure staff are available for ... what is needed to make this happen that everything's available for all children.

Member McLaughlin: responds that first of all, it's the Law and it's about compliance with the Law first and foremost, so we are not subject to a potential hearing. Yes, it could affect the budget in some circumstances. She thinks it has to be on a case by case basis and once again, defers to Joan Bowen, the Director of people services in terms of what the implications of that are. The point of this (meeting) is to craft a statement that can be brought to the school committee as a whole, who may refer to the Rules, Policy and Equity Subcommittee. If they do, she would recommend a very specific date because we've been out of compliance ... technically some 'stuff' is on the website, so technically we are not out of compliance, however, if families are being told their students cannot participate in a life of the school event, that is a potential out of compliance. If families don't that, that's one thing but districts should know it and know what that means. The real purpose is to craft a statement that we feel comfortable with as a Special Education Behavioral Health Subcommittee moving forward to the rest of the school committee to see what their perspective is on that.

Member McLaughlin shares an old non-discrimination statement that is out of date:
<https://www.medfordpublicschools.org/wp-content/uploads/2009/09/Grievance-Procedure.pdf>

And an annual Civil Rights Statement that is also out of date
<https://drive.google.com/file/d/1VZXle43BOg7vep8ghv8aPWcZLv23aik/view>

Member McLaughlin continues to speak to the School Committee Policy on non-discrimination which is part of the MASC boilerplate. She thinks Member Ruseau (Chair of the Rules and Policy and Equity Subcommittee) might recall the changes that may have been made. Notes it is a little different from an accommodation statement.

File: AC - NONDISCRIMINATION

Public schools have the responsibility to overcome, insofar as possible, any barriers that prevent children from achieving their potential. The public school system will do its part. This commitment to the community is affirmed by the following statements that the School Committee intends to:

1. Promote the rights and responsibilities of all individuals as set forth in the State and Federal Constitutions, pertinent legislation, and applicable judicial interpretations.

2. Encourage positive experiences in human values for children, youth and adults, all of whom have differing personal and family characteristics and who come from various socioeconomic, racial and ethnic groups.
3. Work toward a more integrated society and to enlist the support of individuals as well as groups and agencies, both private and governmental, in such an effort.
4. Use all appropriate communication and action techniques to air and reduce the grievances of individuals and groups.
5. Carefully consider, in all the decisions made within the school system, the potential benefits or adverse consequences that those decisions might have on the human relations aspects of all segments of society.
6. Initiate a process of reviewing policies and practices of the school system in order to achieve to the greatest extent possible the objectives of this statement.

Member McLaughlin continues and speaks to discrimination with regard to School Lunch, required by the Federal organization USDA which states that anyone who gets Federal funding is required to publicly state and have a public facing nondiscrimination statement. The school lunch department has one on their page under the USDA requirement.

NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution (Medford Public Schools) is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), disability, age, or reprisal or retaliation for prior civil rights activity.

To file a program complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/USDA-OASCR%20P-Complaint-Form-0508-0002-508-11-28-17Fax2Mail.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to the USDA. The letter must contain the complainant's name, address, telephone number, and written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to the USDA by:

Member McLaughlin continues and share examples from other schools and recommends people look at some of these:

Example 1: Newton Public Schools

The Newton School Committee and Newton Public Schools are committed to maintaining an education and work environment for all school community members that is free from all forms of discrimination, including harassment and retaliation. The members of the school community include the School Committee, employees, administration, faculty, staff, students, volunteers in the schools, family members participating in school meetings or school sponsored activities, and parties contracted to perform work for the Newton Public Schools.

She likes the following highlighted non-discrimination statement:

Newton Public Schools does not exclude from participation, deny the benefits of NPS from or otherwise discriminate against, individuals on the basis of *race, color, sex, sexual orientation, gender identity, religion, disability, age, genetic information, active military/veteran status, marital status, familial status, homelessness, ancestry, ethnic background, national origin, or any other category protected by state or federal law in the administration of its educational and employment policies, or in its programs and activities, and provides equal access to all designated youth groups ¹. Newton Public Schools requires all members of the school community to conduct themselves in accordance with this policy.

Example 2: Marblehead Public Schools - Diversity Equity Inclusion Mission Statement

Marblehead Public Schools is committed to sustaining an inclusive environment that fosters belonging and acceptance. We apply an equitable, culturally relevant lens to students' social, emotional, physical, and academic development. MPS sees the power of diversity. We support proactive allies. We respect and affirm the unique identities of all people across dis/ability, ethnicity, gender identity/expression, language, nationality, sexuality, socioeconomic status, race, and religion. Through holistic practices, we cultivate awareness and agency to grow conscience-minded, empathetic citizens.

Example 3: Hamilton-Wenham Regional School District

Goal 3: Commit to Diversity, Equity, Inclusion, Belonging (DEIB) practices

Hamilton-Wenham Regional School District will meet the evolving and varied needs of all of our students and school community members in a manner that respects and values each individual, and:

- *recognizes, acknowledges, and celebrates the presence of differences in all community members;*
- *promotes justice, impartiality, and fairness;*
- *welcomes and invites diversity in decision-making processes and developing opportunities for our community.*

Member McLaughlin continues and speaks to an important and recent landmark Supreme Court ruling for a deaf student (see Resources #3) where a student wasn't receiving accommodations in his school district, both under ADA (Civil Rights) and IDEA - self-corrects to PQA - the program quality assurance service. A student is not limited to one or the other and they can file claims under both IDEA for academics and ADA.

Member McLaughlin returns to the proposal of a statement and highlights the following, asking people to take a look at the statement and make contributions in order to present to the larger school committee:

Proposed Accommodation/ Inclusion Statement

Medford Public Schools does not discriminate (non-discrimination clause) then accommodation statement:

"We value inclusion and access for all participants and are pleased to provide reasonable accommodations for this activity / event. Please contact [insert contact name and email/phone number] to make a reasonable accommodation request. Requests must be submitted by [insert date]." "This event is wheelchair accessible.

We recommend using an accommodation statement in publicity materials to let individuals know how to **request accommodations for your event or program**, if needed.

Member Ruseau asks what policy will this be amended to and where in the policy?

Member McLaughlin replies that it doesn't actually partially exist in the policy. There is a non-discrimination policy AC that exists

Member Ruseau questions that if so, the proposal is to make this language number 5 or 6?

Member McLaughlin answers potentially, if that is what the Subcommittee decides. First the language needs to be crafted and then potentially a motion to add it to the policy under non-discrimination. This could be a recommendation to make to the larger committee. She waits to see what others are thinking as the language is crafted. It's not something that is embedded in the policy on the school committee page. The other part of the discussion is this needs to be on documents that go to family members as well as the website, the CPAC page and potentially elsewhere - mentions N1 Jones and 504 meetings, school committee members, teachers, staff and the district.

Member Ruseau does not have a problem with the language with the exception of certain language such as 'insert contact name and email/phone number' and 'insert date'.

Member McLaughlin affirms yes that would need to be policy so it is understood what the process is.

Alex Lauric speaks and introduces herself as the co-chair of Medford CPAC and parent of a child at the McGlynn speaks, looking for clarification for the language that would become policy.

Member McLaughlin affirms yes, the Special Education Subcommittee will recommend to the larger committee (7 member body), that this language be included as part of a policy that Medford Public Schools included this policy statement and the 7 member body will vote whether that's acceptable or if they vote there needs to be more discussion and they'd like it to be taken to the Rules, Policy and Equity Subcommittee, in which case she would ask we have a joint subcommittee meeting of Special Education

Behavioral Health and Rules, Policy and Equity subcommittees. She hopes this will not be the case as it is straightforward and the Law. The intention of the meeting was to come to an agreement on an accommodation statement that everyone would feel comfortable putting forward.

Tanya Sullivan speaks and comments that it “says what we’re trying to say”. Is it possible that if something comes up later, the group can revisit the language. She recognizes that it is going to be an undertaking to get this added to all documents, so we want to get it right the first time.

Member McLaughlin comments that we live in an e-world and thinks it is straightforward to add to documents. Confirms that it can be revisited in the future if necessary. She continues, to be clear, there are already elements on the website and thinks it should be more forward facing and on the cover of each of the websites or at least in small print on the bottom. She reads again the non-discrimination clause and acknowledges that it does currently exist. This accommodation statement is in addition to the non-discrimination statement. She mentions that she would like to also see, that, at the city level, it be included in public events when the event is accessible.

Superintendent Marice Edouard-Vincent speaks to how “we value and believe in inclusion”. She is thinking that with the timing of it being the end of the school year and transitions happening, is this something that would be recommended for the start of the next school year or is this something that Member McLaughlin would like to happen tomorrow? She feels that what statement is a value statement. There is nothing wrong with what is being added to what’s already there. She’s been processing and is going to need a little more clarification on where this additional statement needs to be - for example, the Friday Communications and in addition to the website, on every piece of communication that goes out. She confirms the non-discrimination statement is consistently used district-wide and she feels there is training required for secretaries and administrative assistants know, to properly roll it out - to make a concerted effort to make sure we’re doing it. She is not opposed to the essence of what the statement is saying. She is thinking of the rollout.

Member McLaughlin appreciates the need for a rollout to happen in September and agrees that people need to be prepared to make this happen in a well thought out manner and would be fine with that suggestion. CPAC would also be available to advise the district at any point in time moving forward. She’s not saying it needs to go on every single bit of communication. She feels that is up to others to decide. She does feel it should be on anything that is related to the life of the school, after school, enrichment and field trip activities. The non-discrimination agreement on the website is embedded in a number of different places and is hard to find. She feels it should be more clear. She mentions that there is a Family and Community Engagement Subcommittee meeting coming up to work with those who have been responsible for making the website great and feels we can talk more about where that can go. It is also embedded in the School Committee policy which people might not necessarily go to and is a little dry. It is also on the school lunch page and it is as a link under the 504 coordinator however that information is out of date with regard to contacts

Chenine Peloquin speaks and confirms she is “all behind a non-discrimination policy but if the process to get accommodations isn’t clear or hasn’t been documented, and there’s no policies and procedures that are ADA and IDEA compliant, then it doesn’t matter how much we say we believe in it if there’s no way for people to get there and to show the school district is not compliant in whatever process. She wants to make sure that this (statement) is going to be backed up with policy immediately and not just put the statement out and make people feel good.” What does it mean to have an event be accessible - where is this going to be documented? The kinds of things that are mandated to be in place to have an event be accessible?

Member McLaughlin speaks and states that (we) take one step at a time and make sure families and others know it is something that should be done. It is a learning process.

Chenine Peloquin interjects and states it’s been 30 years since the ADA was passed and questions why this wasn’t in place already.

Member McLaughlin is in agreement and hoping to screen for camp next October and we have some other events. So people understand this, the pioneer Judy Human, who was really part of the movement to get the ADA passed, used to say this all the time. It is not exclusive to Medford and happens in a lot of places, where people are not necessarily accommodating. It takes parents and others to create situations that make relationships deteriorate in some cases. What she is hoping to do is and what she hopes the subcommittee and others are trying to do is to figure out how to build relationships and work together. This is a requirement and should be part of policy and get the information out. She is encouraged that everyone is here and is wanting to work it out together.

Alex Lauric speaks and states the needs are very different and the experiences are very different. In our (her family?) experience, the school has been very accommodating (and made it work) once they were contacted and advised the child wants to participate. Her concern is that a lot of parents and families are self excluding because the language was not such that it's welcoming. She doesn't want this to be another fight and is protecting herself as a parent who is already fighting for a lot of things and she doesn't want to go there. She reiterates that their experience has been a positive one once people were contacted.

Member McLaughlin agrees for the most part except for when there are people who don't understand and who don't have the information. She acknowledges the district has been really responsive about accommodations in a number of instances. She has also talked to families who don't realize that is the requirement and or families who don't want to ask because they (may) feel like their child is a burden or they don't want to go through the process. She speaks to the statement being a value statement and what equity means at the forefront for the district. This is an example of also being equitable and being proactive and building relationships.

Member McLaughlin motions: "that the item highlighted in blue" as a suggestion for Accommodation/Inclusion Statement to accompany policy and practice in Medford Public Schools as a recommendation to the whole committee at our next meeting.

"We value inclusion and access for all participants and are pleased to provide reasonable accommodations for this activity / event. Please contact [insert contact name and email/phone number] to make a reasonable accommodation request. Requests must be submitted by [insert date]." "This event is wheelchair accessible.

Member Mustone seconds the motion
Motion carries 3/0

Member McLaughlin states this will move the motion forward at the next school committee meeting on May 15, 2023

Member Ruseau comments that when this recommendation is made, it needs to be precise so the committee can vote. The recommendation is to amend Policy AC Non Discrimination and add this as item number 6. That text (read by Member McLaughlin) cannot be included as read.

Member McLaughlin confirms she understands and it will be a well written motion. She sees no further questions or comments and wants to note for the record that the meeting is ending 6 minutes ahead of schedule.

Motion to Adjourn by Member Mustone; seconded by Member McLaughlin
Motion carries 3/0

Meeting adjourns at 5:53pm